



Notification Waiver Determination

Herron Todd White – CJA Lee Property Valuers

Acquisition	Herron Todd White (Bidco) Pty Ltd (HTW Bidco) applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in CJA Lee Property Pty Ltd (CJA Lee Property) from C McMahon Enterprises Pty Ltd as trustee for the C&N McMahon Family Trust (C McMahon Enterprises) and T.J. Shaw Pty Ltd as trustee for the T.J. Shaw Family Trust (T.J. Shaw), as described in the transaction documents provided as part of the application (the Acquisition). As part of the Acquisition, C McMahon Enterprises and T.J. Shaw will be issued shares in Herron Todd White (Holdings) Pty Ltd. Post-completion, they will own 0.15% of the shares in that entity.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) not to make the notification waiver determination applied for.
Date of determination	7 May 2026

Parties to the Acquisition	The acquirer, HTW Bidco, is a subsidiary of Herron Todd White (Holdings) Pty Ltd (together with its fully owned subsidiaries, HTW Group). The HTW Group provides property valuation and property advisory services in Australia. HTW Group primarily provides residential property valuation services to Australian authorised deposit-taking institutions. HTW Group is majority-owned by funds managed by QPE No. 7 Management Pty Ltd, an entity within the Quadrant Private Equity group (QPE). Apart from HTW Group, QPE is not involved in the supply of property valuation and property advisory services in Australia. CJA Lee Property is an independent advisory firm that provides property valuations, property advisory, and energy advisory services in the Gippsland/south-east Victoria area. Historically, CJA Lee Property has predominantly supplied residential property valuation services to Australian authorised deposit-taking institutions. C McMahon Enterprises and T.J. Shaw are holding companies of CJA Lee Property and, apart from CJA Lee Property, do not operate any other businesses. HTW Group and CJA Lee Property both supply physical and electronic property valuation and advisory services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (ACCC) has considered the

	information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the Act. Based on the information provided in the application, including HTW Group's revenue in Australia and the cumulative Australian revenue of CJA Lee Property and from acquisitions in the past three years, the ACCC considers that the notification thresholds are likely to be met. Based on the information provided in the application the ACCC considers that the Acquisition may raise competition issues. In particular: a. there is a material horizontal competitive overlap between HTW Group and CJA Lee Property in the supply of physical property valuation and advisory services in the Gippsland region of Victoria b. the merger parties' combined share in the supply of physical property valuation and advisory services to customers in the Gippsland region appears to be substantial c. the extent to which the parties are likely to be constrained by alternative suppliers of physical property valuation and advisory services in the Gippsland region is uncertain. The ACCC considers that these potential competition issues warrant consideration through the notification process, including via consultation with third parties. Given the above, the ACCC has determined not to make the notification waiver determination applied for. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act